THE EIGHTH JUDICIAL CIRCUIT OF FLORIDA
ADMINISTRATIVE ORDER NO. 1.30

ATTORNEY APPEARANCE AND WITHDRAWAL REQUIREMENTS FOR ALL CASES

In order to provide for the fair, orderly, and efficient administration of justice in the Eighth Judicial Circuit and to ensure compliance with the Florida Rules of General Practice and Judicial Administration for those appearing before the court; and

WHEREAS, Florida Rule of General Practice and Judicial Administration 2.505(e) states that an attorney may only appear in a judicial proceeding in one of three ways: (1) by filing and serving the first pleading or paper on behalf of a party in a proceeding; (2) by substitution of counsel, requiring written consent of the client, filed with the court, and a court order permitting substitution; or (3) by filing with the court and serving upon all parties a written notice of appearance for a previously *pro se* party, or as co-counsel for a party currently represented by counsel;

WHEREAS, Florida Rule of Civil Procedure 1.041 provides that an attorney may file a limited notice of appearance limiting the attorney's appearance to particular proceedings or specified matter; and

WHEREAS, to terminate the limited appearance, a termination of limited appearance must be filed in accordance with Florida Rule of General Practice and Judicial Administration 2.505; and

WHEREAS, Florida Family Law Rule 12.040, though not applicable to civil cases, requires inclusion of the name, address, and telephone number of the person(s) represented by the withdrawing attorney, along with any designated e-mail address(es) for service, and Florida Family Law Rule of Procedure Form 12.900(d) provides a sample form for such notice, which serves as an acceptable format for use in civil cases (attached hereto as Appendix A);

WHEREAS, Florida Rule of General Practice and Judicial Administration 2.505(f)(1) provides for the termination of appearance of an attorney by written order of the court after

hearing on a motion setting forth reasons for withdrawal and client's last known address, telephone number, and e-mail address, and further provides that the client's e-mail address in the order is the client's designation of a primary e-mail address unless the client designates a different primary e-mail address or is excused under rule 2.516(b)(1); now, it is therefore

ORDERED:

1. Before the court will recognize an attorney as representing a party, the attorney must comply with Florida Rule of General Practice and Judicial Administration 2.505(e) by:

    a. Filing the initial pleading on behalf of a party;

    b. Obtaining an order permitting substitution of counsel; or

    c. Filing a written notice of appearance as counsel or co-counsel.

2. From time to time, with the permission of the client, an attorney may arrange for another attorney to appear at a proceeding to represent a party. Such "coverage" attorney must file a notice of appearance as co-counsel before the court will recognize the attorney as representing that party. Fla. R. Gen. Prac. & Jud. Admin 2.505(e).

3. If an attorney signs an initial pleading or notice of appearance on behalf of a firm, any attorney from that firm will be permitted to appear in that action without filing a separate notice of appearance.

4. Attorneys in family or probate matters seeking to enter a limited appearance on behalf of a party must file, at the time the attorney enters an appearance, a notice of limited appearance pursuant to Florida Family Law Rule of Procedure 12.040, or Florida Probate Rule 5.030, signed by the party, and must otherwise fully comply with Florida Family Law Rule of Procedure 12.040, or Florida Probate Rule 5.030, as well as Florida Rules of General Practice and Judicial Administration 2.505(e). "Limited Appearance" attorneys are considered attorney of record until they have filed the notice of completion of limited appearance required by Rule 12.040(c)(1), or Florida Probate Rule 5.030.

5. Attorneys wishing to terminate their limited appearance in a civil proceeding must file a Termination of Limited Appearance, and the use of the attached form (Appendix A)

is an acceptable form for furnishing such notice. The Clerk will deactivate attorneys filing such termination notices in the subject case and update contact information for the affected party as shown on the notice.

6. This Order shall not be construed to require a separate notice of appearance for shelter proceedings governed by Administrative Order 6.13 ("Standing Shelter Order"), or for hearings where an attorney appears for the sole purpose of requesting non-substantive action, such as continuance.

7. An attorney seeking to withdraw shall file a motion pursuant Florida Rule of General Practice and Judicial Administration 2.505(f)(1). The motion to withdraw shall set forth the reasons for withdrawal and shall include the client's last known address, telephone number, and e-mail address.

This Order replaces Administrative Order 1.30, "Notice of Appearance Requirements," dated March 20, 2024.

The effective date of this Order is January 1st, 2025.

ORDERED ON this 5th day of December, 2024.

Mark W. Moseley, Chief Judge

Appendix A

IN THE CIRCUIT COURT OF THE EIGHTH JUDICIAL CIRCUIT,
IN AND FOR _____ COUNTY, FLORIDA

_____,
Plaintiff,

v.

_____,
Defendant.

Case No.: _____

Division: _____

TERMINATION OF LIMITED APPEARANCE

{Attorney's name} _____, files this Termination of Limited Appearance on behalf of the [**check one**] (___) Plaintiff (___) Defendant, *{name}*, _____ _____, and certifies that the proceeding or matter is concluded.

The clerk of the above-styled court is requested to enter this Termination of Limited Appearance of record. Copies of all future court papers should be served on the [**check one only**] (___) Plaintiff (___) Defendant at *the contact information shown below.*

I certify that a copy of this termination of limited appearance was: [check all used] (___) e-mailed (___) mailed (___) hand delivered on *{date}* _____ to the person(s) listed below.

Other party or his/her attorney:
Name: _____
Address: _____
City, State, Zip: _____
Telephone Number: _____
E-mail Address(es): _____

Client Party:
Name: _____
Address: _____
City, State, Zip: _____
Telephone Number: _____
E-mail Address(es): _____

_____
Signature of Attorney
Printed Name: _____
Address: _____
City, State, Zip: _____
Telephone Number: _____
E-mail Address(es): _____
Florida Bar Number: _____